



Procedure No: EXP202213769 (PS/0101/2023)

SANCTIONING PROCEDURE RESOLUTION

From the actions carried out by the Spanish Agency for Data Protection and based on the following,
BACKGROUND

FIRST: On 29/11/22, Mr. A.A.A., sole administrator of GLOBAL RECOVERY SOLUTIONS, S.L. (hereinafter, the claimant), with CIF B65826406, filed a complaint with the Spanish Agency for Data Protection against the entity GOLDEN SOLUTIONS 2011 S.L. (hereinafter, the defendant), with CIF: B04969960, owner of the website www.goldenimpagos.com, for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The complaint presented was based, among other issues, on the following points:

a).- The claimant has received unsolicited advertising emails (spam) from the defendant without having previously requested or authorized them. Documents No. 1, 2, and 3 are attached, which are the three emails received on 04/10/2022, 19/10/2022, and 8/11/2022, respectively, advertising a company with the trade name GOLDEN IMPAGOS, without specifying commercial registration details, which offers its debt recovery services.

In response to the received spam, the claimant contacted GOLDEN IMPAGOS via email requesting proof of authorization for sending advertising communications or the existence of a prior contractual relationship, as well as information on where they obtained their email address.

GOLDEN IMPAGOS replied to the email expressing their apologies and that they would proceed to unsubscribe the email address from their database, without providing the requested documentation in the previous email, nor any proof that the unsubscription from any database has been properly processed.

b).- In the absence of a response regarding the requested documentation, the claimant decided to visit the GOLDEN IMPAGOS website to contact them and noticed that the advertised company commits several violations of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce on its website:

- On the GOLDEN IMPAGOS website (www.goldenimpagos.com), we do not find any details of the company's corporate name. We click

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In the link of the Privacy Policy, we see that it does identify its corporate name, as GOLDEN IMPAGOS S.L. Attached as DOCUMENT No. 10. We searched the Property Registry for GOLDEN IMPAGOS, S.L. and it does not appear as a registered company. Attached as DOCUMENT No. 11.

It has been verified regarding the company in question that the only truthful data is that which appears on its website: Calle Enmedio 9-11 Piso 8 Pasaje Ducal, 12001 Castellón. Attached as DOCUMENT No. 12 is the registration note of GOLDEN SOLUTIONS 2011, S.L. with CIF B04969960 and established in 2021, despite the confusion that the corporate name "2011" may cause, giving the impression of being a company created in that year and which acquires seniority.

In the documents accompanying the complaint, the following stands out:

- Copy of the emails sent from the address <> info@recuperaciondedeudas.es, on the dates 04/10/22; 19/10/22; and 08/11/22, to the complainant's email address, containing advertising or commercial messages.

SECOND: On 30/12/22, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded said complaint to the entity GOLDEN SOLUTIONS 2011 S.L., for it to proceed with

its analysis and inform, within one month, about what was stated in the complaint.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) and RD 203/2021, of March 30, which approves the Regulation of action and operation of the public sector by electronic means, through electronic notification, was not collected by the responsible party within the availability period, being understood as rejected on 10/01/23 in accordance with the provisions of Article 43.2 of the LPACAP, reiterating notification by certified postal mail to the address: GOLDEN SOLUTIONS 2011, S.L.; ENMEDIO, 9 11; 12001 CASTELLÓ DE LA PLANA; CASTELLÓN, which was returned to sender on 30/01/23, with the message "incorrect address."

The request for information was resent to the defendant on 02/02/23, via electronic notification, which was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 13/02/23, reiterating the attempt to notify by postal mail to the address: GOLDEN SOLUTIONS 2011, S.L. C/ ENMEDIO, PASAJE DUCAL 9-11 12001 CASTELLÓ DE LA PLANA CASTELLÓN, which was returned to sender on 15/02/23, with the message "Unknown."

THIRD: On 28/02/23, the Director of the Spanish Agency for Data Protection issued an admission agreement for the processing of the complaint filed, in accordance with Article 65 of the LPDGDD, upon noting possible rational indications of a violation of the rules within the scope of the competencies of the Spanish Agency for Data Protection.

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FOURTH: On 14/04/23, this Agency accessed the website www.goldenimpagos.com, confirming the following characteristics regarding its "Privacy Policy":

a).- Regarding the collection of users' personal data:

1st.- Through the link <>, located at the top of the main page, the website displays a form where personal data such as name, phone number, email address, and message can be entered.

Before being able to submit the registration form, the user must click the option:

_ I have read and accept the <>

b).- Regarding the "Privacy Policy":

1st.- If the "Privacy Policy" of the website is accessed through the link provided in the indicated form, the website redirects the user to a new page <https://goldenimpagos.com/politica-de-privacidad>, where the following information can be read:

"In compliance with the provisions of Organic Law 15/1999, of December 13, on the Protection of Personal Data (LOPD), and other applicable legislation and/or that replaces it, all information received on the website, through inquiries, data submission, or any other means, will be treated with the utmost and absolute confidentiality.

The interested party is informed that this data will be included in a file owned by GOLDEN IMPAGOS, S.L. and may be used to manage their participation in the blog of the website

www.GOLDENIMPAGOS.com, as well as to send the owner all kinds of information, advertising, offers, promotions, and other communications via the provided email or through email marketing campaigns, always related to the theme of the website to which they have registered their data. Such data will never be transferred to third parties and are the property of GOLDEN IMPAGOS, S.L.

Furthermore, we also inform you that as a user, you have the right to access the data, rectify it, and cancel it if applicable, as well as to oppose its processing under the terms contemplated in the aforementioned Organic Law 15/1999. These rights can be exercised at the address for these purposes at the address of GOLDEN IMPAGOS, S.L. located at Calle Enmedio 9-11 Piso 8 Pasaje Ducal, 12001 Castellón or via email at info@GOLDENIMPAGOS.com. The personal data obtained through the website will have and have the necessary protection to prevent alteration, loss, unauthorized processing, or access."

FOURTH: On 27/04/23, the Directorate of the Spanish Agency for Data Protection initiated sanctioning proceedings against the entity being claimed, at C/ Jorge Juan, 6, appreciating reasonable indications of violation of the provisions established in Article 21) of the LSSI, for sending advertising emails without having been requested or expressly authorized by the recipient, with an initial fine of 5,000 euros (five thousand euros) and for the violation of Article 13 of the RGPD, for the lack of information provided to the user of the website owned by it in accordance with the current regulations, with an initial fine of 2,000 euros (two thousand euros).

The transfer of the document notifying the initiation of the file was carried out in accordance with the rules established in the LPACAP to the address appearing as the Social Address in the Central Commercial Registry: GOLDEN SOLUTIONS 2011, S.L. C/ ENMEDIO, PASAJE DUCAL 9-11 12001 CASTELLÓ DE LA PLANA CASTELLÓN, being returned to sender with the date 11/05/23, with the message "Unknown."

On 18/05/23, the notification of the initiation agreement was made by announcement in the Unique Edict Board of the Official State Bulletin, in accordance with the provisions of Article 44 of the LPACAP. In this announcement, the claimed party was informed about the possibility of obtaining a copy of the opening agreement.

FIFTH: On 27/07/23, a proposal for resolution was sent to the claimed party, in which it was proposed that the Director of the Spanish Agency for Data Protection proceed to sanction the entity GOLDEN SOLUTIONS 2011 S.L., for the violation of Article 21) of the LSSI, for sending advertising emails without having been requested or expressly authorized, with a fine of 5,000 euros (five thousand euros) and for the violation of Article 13 of the RGPD, for the lack of information provided to the user of the website owned by it, in accordance with the current regulations, with a fine of 2,000 euros (two thousand euros).

Additionally, it was proposed that the Director of the Spanish Agency for Data Protection require the entity GOLDEN SOLUTIONS 2011 S.L. to implement, within one month, the necessary corrective measures to adapt its actions to the regulations on personal data protection, as well as to inform this Agency within the same period about the measures adopted, in accordance with the provisions of the aforementioned Article 58.2 d) of the RGPD.

The transfer, which was carried out in accordance with the rules established in the LPACAP and in RD 203/2021, through electronic notification, was not collected by the responsible party within the period of availability, being understood as rejected on 07/08/23 in accordance with the provisions of Article 43.2 of the LPACAP.

There is no record that any written allegations have been submitted to this Agency regarding the proposal for resolution.

From the actions carried out in this procedure and the documentation in the file, the following has been accredited:

PROVEN FACTS

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First: The claim is based on the fact that unsolicited advertising emails (spam) have been received from the entity being claimed without prior request or authorization. Three emails received on 04/10/22, 19/10/22, and 08/11/22 are attached, which offer their debt recovery services.

Second: On the website www.goldenimpagos.com, it is confirmed that there is the possibility of obtaining personal data from users through the link <>.

In the "Privacy Policy" of the website <https://goldenimpagos.com/politica-de-privacidad>, the following information can be read:

"In compliance with the provisions of Organic Law 15/1999, of December 13, on the Protection of Personal Data (LOPD), and other applicable legislation and/or that replaces it, all information received on the website, through inquiries, data submission, or any other means, will be treated with the utmost and absolute confidentiality.

The interested party is informed that this data will be included in a file owned by GOLDEN IMPAGOS, S.L. and may be used to manage their participation in the blog of the website www.GOLDENIMPAGOS.com, as well as to send the owner all types of information, advertising, offers, promotions, and other communications via the provided email or through email marketing campaigns, always related to the theme of the website to which they have registered their data. This data will never be transferred to third parties and is the property of GOLDEN IMPAGOS, S.L. Furthermore, we also inform you that as a user, you have the right to access the data, rectify it, and cancel it if applicable, as well as to oppose its processing under the terms contemplated in the aforementioned Organic Law 15/1999. These rights can be exercised at the address for these purposes at the address of GOLDEN IMPAGOS, S.L. located at Calle Enmedio 9-11 Piso 8 Pasaje Ducal, 12001 Castellón or via email at info@GOLDENIMPAGOS.com. The personal data obtained through the website will have and have the necessary protection to prevent alteration, loss, unauthorized processing, or access.”

LEGAL GROUNDS

I-

Competence

- Regarding the sending of advertising emails:

The Director of the Spanish Agency for Data Protection is competent to resolve this Sanctioning Procedure, in accordance with the provisions of art. 43.1, second paragraph, of the LSSI.

- Regarding the processing of personal data and the “Privacy Policy”:

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The Director of the Spanish Agency for Data Protection is competent to resolve this procedure, by virtue of the powers that art. 58.2 of the GDPR recognizes to each Control Authority and, as established in arts. 47, 64.2, and 68.1 of the LOPDGDD.

II.-1

Regarding the sending of emails with advertising messages having previously opposed it:

According to the claimant, they have received unsolicited advertising emails (spam) from the entity GOLDEN IMPAGOS SL without having previously requested or authorized it.

The complaint is accompanied by the three emails received on 04/10/22, 19/10/22, and 08/11/22, containing advertising messages.

II.-2

Classification of the possible infringement committed

Article 21 of the LSSI states the following:

“1. The sending of advertising or promotional communications by email or other equivalent electronic means that have not been previously requested or expressly authorized by the recipients is prohibited.
2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of their own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility of opposing the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.”

Therefore, in accordance with the evidence available, the facts presented constitute a violation of article 21 of the LSSI by the claimed party for sending advertising emails without having been requested or expressly authorized by the recipient.

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II.-3

Sanction

The aforementioned infringement is classified as "minor" in Article 38.4.d) of the aforementioned regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic means when the requirements established in Article 21 are not met and does not constitute a serious infringement."

According to the provisions established in Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

In accordance with the indicated provisions, and without prejudice to what results from the instruction of the procedure, for the purpose of determining the amount of the sanction to be imposed in this case, it is considered appropriate to gradate the sanction to be imposed according to the following aggravating criteria established in Article 40 of the LSSI:

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Section b): Time period during which the infringement has been committed, considering that the advertising emails were sent between 04/10/22 and 08/11/22.

According to these criteria, it is deemed appropriate to impose a sanction of €5,000 (five thousand euros) for the infringement of Article 21 of the LSSI, regarding the sending of advertising emails without having been requested or expressly authorized by the recipient.

III-1

Regarding the information provided in the "Privacy Policy" of the website www.goldenimpagos.com: In the verification carried out on 14/04/23, it was found that in the "Privacy Policy" of the website in question:

First, the "Privacy Policy" refers to Organic Law 15/1999, of December 13, on the Protection of Personal Data (LOPD).

In this regard, it should be noted that, in the Single Repealing Provision of the LOPDGDD, it is stated that:

1. Without prejudice to the provisions of the fourteenth additional provision and the fourth transitional provision, Organic Law 15/1999, of December 13, on the Protection of Personal Data is repealed. It is established, in its sixteenth final provision, that: "This organic law shall enter into force the day after its publication in the Official State Gazette."

Since the publication of the LOPDGDD was on 06/12/18, its entry into force occurred on 07/12/18, thus repealing from that date Organic Law 15/1999, of December 13, on the Protection of Personal Data (LOPD).

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Secondly, it was found that the "Privacy Policy" of the website in question lacks necessary information regarding what is established in Article 13 of the GDPR, such as the period during which personal data will be retained or information about the rights of users regarding their personal data.

III.-2

Classification of the committed infringement

Recital 61) of the GDPR establishes that:

"Information should be provided to data subjects about the processing of their personal data at the time it is obtained from them or, if obtained from another source, within a reasonable period, depending on the circumstances of the case. If personal data can be legitimately communicated to

another recipient, the data subject should be informed at the time they are communicated to the recipient for the first time. The data controller intending to process the data for a purpose other than that for which they were collected must provide the data subject, prior to such further processing, information about that other purpose and any other necessary information (...)."

In this regard, Article 12.1 of the GDPR establishes, regarding the requirements that the information provided by the data controller to the data subjects must meet, the following:

"1. The data controller shall take appropriate measures to provide the data subject with all information indicated in Articles 13 and 14, as well as any communication in accordance with Articles 15 to 22 and 34 relating to the processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, in particular any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject, the information may be provided orally, provided that the identity of the data subject is demonstrated by other means (...)."

And for its part, Article 13 of the GDPR details the information that must be provided to the data subject when the data is collected directly from them:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide them, at the time of obtaining the data, with: a) the identity and contact details of the controller and, where applicable, of their representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing; d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party; e) the recipients or categories of recipients of the data.

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personal data, where applicable; f) where applicable, the intention of the data controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to the appropriate or adequate safeguards and the means to obtain a copy of these or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing: a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period; b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to processing, as well as the right to data portability; c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal; d) the right to lodge a complaint with a supervisory authority; e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data; f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject."

Therefore, the deficiencies observed in the "Privacy Policy" of the website www.goldenimpagos.com constitute a violation of the provisions established in Article 13 of the GDPR.

III.-3

Sanction

This infringement may be sanctioned as provided in Article 83.5.b) of the GDPR, which states that:

“Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, whichever is higher: a) the rights of data subjects under Articles 12 to 22.”

In this regard, Article 74.a) of the LOPDGDD, concerning minor infringements, indicates that: Minor infringements are considered to be those of a merely formal nature referred to in Articles mentioned in paragraphs 4 and 5 of the C/ Jorge Juan, 6

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Article 83 of Regulation (EU) 2016/679 and, in particular, the following: a) The failure to comply with the principle of transparency of information or the right to information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.

In accordance with the above, it is deemed appropriate to impose a fine of 2,000 euros (two thousand euros) for the infringement of Article 13 of the GDPR.

III.-4

Measures

Article 58.2 of the GDPR establishes the corrective powers available to a supervisory authority, and paragraph d) of the cited provision establishes that it may consist of, “ordering the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame.”

Therefore, it is appropriate to impose the corrective measure described in Article 58.2.d) of the GDPR and order the respondent party to establish, within one month, the technical measures on the website owned by it, including a “Privacy Policy” that informs users providing their personal data about the management of such data, as specified in Article 13 of the GDPR.

In accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on the entity, GOLDEN SOLUTIONS 2011 S.L. with CIF: B04969960, for the infringement of Article 21 of the LSSI, classified in Article 38.4.d) of the LSSI, a fine of 5,000 euros (five thousand euros).

SECOND: TO IMPOSE on the entity GOLDEN SOLUTIONS 2011 S.L. with CIF: B04969960, owner of the website www.goldenimpagos.com for the infringement of Article 13 of the GDPR, classified in Article 83.5.b) of the GDPR, a fine of 2,000 euros (two thousand euros).

THIRD: TO ORDER the entity GOLDEN SOLUTIONS 2011 S.L. with CIF: B04969960, to implement, within one month, the necessary corrective measures to adapt its owned website to the personal data protection regulations, based on the provisions of Article 13 of the GDPR, as well as to inform this Agency within the same timeframe about the measures adopted.

FOURTH: TO NOTIFY this resolution to GOLDEN SOLUTIONS 2011 S.L.

FIFTH: To warn the sanctioned party that the imposed fine must be paid once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated.

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Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data

Protection at the banking entity CAIXABANK, S.A., or otherwise, it will proceed to its collection in the executive period.

Once the notification is received and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, both inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, both inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative procedure (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration with the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1.

They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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